BYLAW 3
THE ELECTIONS BYLAW
UNIVERSITY OF TORONTO ENGINEERING SOCIETY

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If you have any questions regarding this document, please contact the Speaker at speaker@skule.ca.

CHAPTER 0 - GENERAL

0.0. Interpretation and Definitions

0.0.1. In any situations where this Bylaw contradicts Bylaw 1, Bylaw 1 shall have precedence.

0.0.2. In this document:

a. "CRO" shall refer to the Chief Returning Officer;
b. "DRO" shall refer to a Deputy Returning Officer;
c. "ORO" shall refer to the Office of Returning Officers, a caucus comprising of the CRO and DROs;
d. "Election Period" shall refer to the collective periods of: the Nomination Period, the Campaign Period, and the Voting Period;
e. "Nomination Period" shall refer to the period when Nomination Packages are made available and accepted;
f. "Campaign Period" shall refer to the period when campaigning is allowed;
g. "Voting Period" shall refer to the period when voting is made available;
h. "Slate" shall mean one or more candidates endorsing another either verbally or through shared campaign resources; and
i. “Nominator” shall refer to a Member who wishes to nominate an individual other than themself to a position.

0.1. General

0.1.1. The CRO shall notify all Members subscribed to receive Governance Updates through the Governance Mailing List of the opening of a Nomination Period of any referendum or election and the positions to be elected.

a. Notice shall be given at least two (2) days in advance via an email.

0.1.2. The CRO shall notify all Members by email at the opening of an Election Period. This notice shall include all information, or a reference to such, necessary to form a complete nomination.

0.1.3. The CRO shall notify all Members at 12pm on the day an Election Period closes.

0.1.4. Electronic voting shall be made available over the entirety of a given Voting Period for an election cycle, where applicable, through vote.skule.ca.

0.1.5. For a given election cycle, the CRO shall publicly certify and announce election results to the Society within six hours of the end of the election period.

0.1.6. Each Nomination Package shall include the following mandatory sign-off statement signifying that the "Confidentiality Agreement - Information Sharing" document will be used to verify the Member's enrolment status with the Registrar, as per the conditions outlined in Bylaw 1 Section 1.0.1.

a. "By signing this Nomination Package, I hereby allow the Chief Returning Officer of the Engineering Society to verify my enrolment status using the "Confidentiality Agreement - Information Sharing" document as described in

Bylaw 1 Section 1.0.1, in order to complete the nomination process. Further, I acknowledge if I obtain this position, I allow the Speaker or President (determined by the sub-clauses of Bylaw 1 Section 1.0.1) to verify my enrolment status if a concern or complaint is brought to the attention of the President, Ombudsperson, and/or Speaker."

0.1.7. Elections must not occur within the Fall or Winter Exam Periods.

0.1.8. Elections requiring a Voting Period shall not occur within the Summer Months.

0.1.9. Where nominations are required for a position, candidates for that position may not be nominators for the same position.

0.1.10. No more than one election shall be held in a given month, with the following exceptions:

a. Officer Elections
b. Valedictorian Elections

0.2. Principles

0.2.1. In general, the goal of any election is to:

a. Objectively inform all voters;
b. Elect an appropriate candidate; and
c. Offer a fair chance to all legitimate candidates.

0.2.2. The following actions are strictly forbidden:

a. Spamming, consisting of sending unsolicited bulk email and/or unwanted direct messages (including but not limited to Facebook Messenger, Instagram Direct, etc.);
b. Solicitation, consisting of forceful, urgent or repeated requests; and
c. Deception, consisting of lies, coercion or slander.

0.2.3. Election activities in contravention of the following shall be grounds for disqualification:

a. Section B of the University of Toronto Student Code of Conduct
b. The City of Toronto Municipal Code
c. Provincial Law
d. Federal Law

0.3. Communication

0.3.1. Notifications shall be distributed via the email address provided by the candidate to the CRO.

0.3.2. Candidates are responsible for ensuring any information provided to the CRO is legible and accurate, including, but not limited to, their email address.

0.3.3. The following are examples of invalid excuses for not receiving notifications:

a. Candidate's email inbox was full; and/or
b. Emails were redirected to spam/junk folder;

0.3.4. Any questions or concerns may be addressed to the CRO at any time by email at cro@skule.ca.

0.3.5. All questions asked to the CRO and all answers and decisions given by the CRO pertaining to the election process shall be emailed out to the appropriate candidates and the DROs in a timely manner.

CHAPTER 1 - CRO

1.0. Roles and Responsibilities

1.0.1. There shall be a CRO who shall have sole responsibility for conducting elections unless otherwise stated.

1.0.2. The CRO shall regularly update online content for elections with relevant information, including, but not limited to, election notices, election results, and position requirements.

1.0.3. The CRO shall not hold any, nor be a candidate in any, other official elected position of the Engineering Society during their term of office.

1.0.4. The CRO may appoint, at any point in time, DROs to assist in the effective and faithful discharge of the duties of their office.

a. Efforts should be made to notify all members of the appointment process; and
b. DROs shall not be candidates for any elections they are overseeing.
c. Current or Incoming Officers shall not be DROs.
d. Members who currently hold a position within the Society shall not be DROs for elections of that type of position. This includes but is not limited to the following:
    i. Board Members shall not be DROs for elections for positions on the Board of Directors.
    ii. Class Representatives shall not be DROs for elections of Class Representatives.
    iii. Discipline Club Executives shall not be DROs for elections of Discipline Club Positions.
e. All potential DROs shall inform the CRO of all positions which they currently hold, as well as any potential conflicts of interest prior to becoming a DRO.
f. The CRO shall have the authority to remove a DRO from their position at any time.

1.0.5. The ORO and all officials of the elections process, including polling clerks and other designates of the CRO, must remain impartial during both the campaign and voting periods.

1.0.6. The CRO shall inform all candidates of the appeal process at the end of an election and following any rulings.

1.0.7. Should the CRO judge that they are unable to exercise impartial judgement over one or more candidate(s) for a given election cycle, they may request that the Speaker assume the role of Interim CRO for matters involving said candidate(s) for the duration of the election cycle.

a. The Speaker may choose to deny this request, in which event the CRO shall continue to exercise their full authority over the candidate(s) in question.

1.0.8. In the event that the Speaker declares they are unable or unwilling to execute the role of interim CRO faithfully, the role of interim CRO shall be passed to a Director of the Board elected in a special election, which is to be held immediately after the Speaker is declared unable or unwilling.

a. Holding another position within the Society does not preclude any Member from holding the position of interim CRO, regardless of Section 1.0.3

b. By accepting the role of interim CRO, a Member forfeits the ability to be a candidate for any official elected position of the Society until their term as interim CRO ends.

1.1. Election Period for the CRO

1.1.1. The CRO shall be elected according to the process outlined in Section 5.1, and shall serve a term that concludes at the end of the Winter Ratification Meeting.

CHAPTER 2 - OFFICER ELECTIONS

2.0. Election Period

2.0.1. The Nomination Period for the election of Officers shall commence at 9:00 am on the Monday before Reading Week of the Winter semester, and shall close at 5:00 pm on the Friday of Reading Week.

2.0.2. A Member shall be considered nominated upon receipt by the CRO a completed Nomination Form, during the Nomination Period, which shall include:

a. The Member's name, student number, contact information, and signature;
b. The names, student numbers, and signatures of twenty-five (25) Nominators, all of whom shall be Members;
c. A fifty dollar ($50) cash deposit; and
d. A letter in accordance with Section 24(8) of ONCA attesting their consent to act as a director of the corporation if elected.

2.0.3. Potential candidates must submit a voter's statement, through a means specified by the Nomination Package, which is due at the close of the Nomination Period.

a. The voter's statement must have at least one (1) word, and is limited at the discretion of the CRO, in accordance with section 8.0.3

2.0.4. The CRO shall produce a certified list of candidates within seventy-two (72) hours from the close of the Nomination Period.

2.0.5. No Member may be nominated for more than one Officer position.

2.0.6. The Campaign Period shall:

a. Commence between twenty four (24) and seventy-two (72) hours after the The All Candidates Meeting; and
b. Be between two (2) and three (3) business days (inclusive) in length.

2.0.7. The Voting Period shall:

a. Commence between twelve (12) and seventy-two (72) hours after the end of the Campaign Period; and
b. Be between two (2) and three (3) business days (inclusive) in length.

2.0.8. Candidates who receive at least 5% of the votes cast for their position and remove all of their posters, as described in Section 8.1, within seven (7) days of the close of the Voting Period shall have their deposits returned.

2.1. Reopening Nominations

2.1.1. If no nominations have been received for an Officer position by the deadline the CRO shall reopen nominations for that position, by sending an email to all Members. This email shall explain why the nominations are being re-opened and reiterate the nomination process.

2.1.2. The reopened nomination period shall last at least three (3) days.

2.2. All Candidates Meeting (ACM)

2.2.1. An All Candidates Meeting will be held within ninety-six (96) hours after the conclusion of the Nomination Period. The details of the ACM (time and location), if available, will be outlined in the Nomination Package and must be chosen in consideration of those who cannot attend during normal business hours (i.e. 9:00am - 5:00pm).

2.2.2. In the case of reopened nominations, the candidates shall be informed of the date, time, and location of this meeting when the extended nomination period ends.

2.2.3. Attendance of the ACM is mandatory. Nominees who are unable to attend may have a designate (proxy) attend the meeting in their place.

a. Proxy information (nominee's and proxy's names) must be provided to the CRO at least twenty-four (24) hours prior to the ACM; and

b. Failure to attend the ACM, or have a proxy attend on the nominee's behalf, will result in disqualification.

i. If the All Candidates Meeting is being held on a digital platform, absences due to technical issues may be excused at the CRO's discretion. These issues, with any evidence the candidate is comfortable sharing, must be reported to the CRO within 24 hours of the missed meeting.

2.2.4. Nominees who submit a complete Nomination Package and attend the ACM, or have a proxy attend in their place, will be considered candidates.

2.3. All Candidates Forum

2.3.1. An All Candidates Forum shall be held during the Campaign Period of the Officer Elections at a time and location to be announced on the Nomination Package.

2.3.2. The purpose of the forum is to provide Officer candidates an opportunity to publicly address the Members of the Society as well as for Members to ask questions.

2.3.3. The CRO, or their designate, shall moderate forum activities.

2.3.4. Presidential candidates will be given five (5) minutes to make a speech, a set amount of time to ask questions of other candidates at the discretion of the CRO, and five (5) minutes to field questions from Members.

2.3.5. All Vice-Presidential candidates will be given three (3) minutes to make a speech, a set amount of time to ask questions of other candidates at the discretion of the CRO, and three (3) minutes to field questions from Members.

2.3.6. In the case where there is only a single candidate for a position, the candidate will be given two (2) minutes to make a speech, with the appropriate time to field questions from Members, as stated above.

2.4. By-Elections

2.4.1. The CRO shall call a by-election in every month during which an Officer position is vacant, if at least four (4) months remain before the end of the term of the position, and except as otherwise prohibited by the Bylaws.

2.4.2. Notification of the By-Election shall be sent by email to all Members.

2.4.3. The Nomination Period shall be five (5) business days.
   a. If no nominations have been received by the deadline, the CRO shall re-open nominations for at least three (3) business days.

2.4.4. Election rules for an Officer election shall be followed except as specified below.
   a. There shall be a Candidates Meeting on the evening of the close of nominations for the by-election; and
   b. Campaigning shall begin on the next business day following the close of the Nomination Period.
   c. The period for submitting appeals and/or complaints to the Election Appeals Committee (as defined in Chapter 10) shall be between twenty-four (24) hours prior to the beginning of the Voting Period and three (3) days after the announcement of election results, to the minute.

CHAPTER 3 - SPRING ELECTIONS

3.0. General

3.0.1. The following apply to all elections outlined in this Chapter, except for the Winter Election and the Election for the Speaker of the Board of Directors:

a. An All Candidates Meeting (ACM) will be held pursuant to the description in 2.2.1;

b. Potential candidates must submit a voter's statement, through a means specified by the Nomination Package, which is due at the close of the Nomination Period; and

i. The voter's statement must have at least one (1) word, and is limited to one-hundred (100) words in length, in accordance with section 8.0.6

c. The CRO shall produce a certified list of candidates within seventy-two (72) hours from the close of the Nomination Period.

3.1. Board of Directors Election Period

3.1.1. The Nomination Period for Board of Directors shall commence no later than 9:00 am on the Monday of the fourth week after Reading Week in the Winter Term, and shall close at 5:00 pm on the Friday of the same week.

3.1.2. A Member may only be nominated for a position on the Board of Directors for the constituency to which they belong or have declared intent to transfer into.

3.1.3. A Member who currently holds a seat on the Board of Directors may not seek another seat with the same term without first resigning their current seat.

3.1.4. Members shall not be nominated for more than one (1) Board of Directors position.

3.1.5. A Member shall be considered nominated upon receipt by the CRO a completed Nomination Form, during the Nomination Period, which shall include:

a. The Member's name, student number, contact information, and signature;

b. The names, student numbers, and signatures of ten (10) Nominators, all of whom shall be from the same constituency represented by the Director position; and

c. A letter in accordance with Section 24(8) of ONCA attesting their consent to act as a director of the corporation if elected.

3.1.6. The Campaign Period shall:

a. Commence between twenty four (24) and seventy-two (72) hours after the ACM; and

b. Be between two (2) and three (3) business days (inclusive) in length.

3.1.7. The Voting Period shall:

a. Commence between twelve (12) and seventy-two (72) hours after the end of the Campaign Period; and

b. Be between two (2) and three (3) business days (inclusive) in length.

3.2. Third, PEY, and Fourth Year Class Representatives Election Period

3.2.1. Class Representatives shall be elected by a vote of the Members of each Constituency.

3.2.2. The Nomination, Campaign, and Voting Periods for Third, PEY (if applicable to the Discipline Club), and Fourth Year Class Representatives shall be the same as those for the Board of Directors election.

3.2.3. A Member shall be considered nominated upon receipt by the CRO a completed Nomination Form, during the Nomination Period, which shall include:

a. The Member's name, student number, contact information, and signature.

3.2.4. Discipline Clubs may opt to elect Third, PEY (if applicable to the Discipline Club), and Fourth Year Class Representatives in the fall term, with the same Nomination, Campaign, and Voting Periods as First and Second Year Class Representatives. To accomplish this, notice by email to the CRO is required no later than February 28.

3.2.5. Discipline Clubs may have up to two (2) seats per Class Representative Position. To accomplish this, notice by email from the Discipline Club Chair to the CRO is required no later than ten (10) days before the opening of Nomination Period.

a. Regardless of the number of seats available, all candidates for a Class Representative Position shall run individually.

b. Discipline Clubs representing more than one discipline may have up to two (2) seats for every discipline they represent with each seat being open to any individual of the disciplines represented.

3.3. Ancillary Organizations Executives Election Period

3.3.1. The Chairs or Presidents of the Ancillary Organizations listed in the subsections of Section 3.3.3 shall be elected through the Engineering Society.

3.3.2. Ancillary Organizations may also choose to operate elections for other executive positions through the Engineering Society.

a. For the position to be included in an election cycle, the CRO must be notified of the eligibility requirement(s) and the number of seats open for all requested executive positions by email at least 2 weeks before the nomination period begins.

3.3.3. The Nomination, Campaign, and Voting Periods for positions of the following Ancillary Organizations shall be the same as those for the Board of Directors election:

a. Engineering Athletics Association (positions elected by the Membership);

b. Chemical Discipline Club (positions elected by the Chemical Engineering constituency);

c. Civil Discipline Club (positions elected by the Civil Engineering constituency);

d. Electrical and Computer Discipline Club (positions elected by the Electrical Engineering & Computer Engineering constituencies);

e. Engineering Science Discipline Club (positions elected by the Engineering Science constituency);

f. Industrial Discipline Club (positions elected by the Industrial Engineering constituency);

g. Materials Science and Engineering Discipline Club (positions elected by the Materials Science and Engineering constituency);
h. Mechanical Discipline Club (positions elected by the Mechanical Engineering constituency);
i. Mineral Discipline Club (positions elected by the Mineral Engineering constituency); and
j. TrackOne Club (positions elected by the TrackOne General Engineering constituency).

3.3.4. A Member shall be considered nominated upon receipt by the CRO a completed Nomination Form, during the Nomination Period, which shall include:
a. The Member's name, student number, contact information, and signature.

CHAPTER 4 - FALL ELECTIONS

4.0. General

4.0.1. The following apply to all elections outlined in this Chapter:

a. An All Candidates Meeting (ACM) will be held pursuant to the description in 2.2.1; and

b. Potential candidates must submit a voter's statement, through a means specified by the Nomination Package, which is due at the close of the Nomination Period; and

i. The voter's statement must have at least one (1) word, and is limited to one-hundred (100) words in length, in accordance with section 8.0.6

c. The CRO shall produce a certified list of candidates within seventy-two (72) hours from the close of the Nomination Period.

4.1. First Year Board of Directors Election Period

4.1.1. The Nomination Period for First Year Representatives of the Board of Directors shall commence at 9:00 am on the Wednesday of the first full week of class in the Fall Term, and shall close at 5:00 pm on the following Monday.

4.1.2. A Member may only be nominated for a position on the Board of Directors for the constituency to which they belong or have declared intent to transfer into.

4.1.3. Members shall not be nominated for more than one (1) Board of Directors position.

4.1.4. A Member shall be considered nominated upon receipt by the CRO a completed Nomination Form, during the Nomination Period, which shall include:

a. The Member's name, student number, contact information, and signature; and

b. The names, student numbers, and signatures of ten (10) Nominators, all of whom shall be from the same constituency represented by the Director position.

4.1.5. The Campaign Period shall:

a. Commence between twenty four (24) and seventy-two (72) hours after the ACM; and

b. Be between two (2) and three (3) business days (inclusive) in length.

4.1.6. The Voting Period shall:

a. Commence between twelve (12) and seventy-two (72) hours after the end of the Campaign Period; and

b. Be between two (2) and three (3) business days (inclusive) in length.

4.2. First and Second Year Class Representatives Election Period

4.2.1. The Nomination, Campaign, and Voting Periods for First and Second Year Class Representatives shall be the same as those for the First Year Board of Directors election.

4.2.2. A Member shall be considered nominated upon receipt by the CRO a completed Nomination Form, during the Nomination Period, which shall include:

a. The Member's name, student number, contact information, and signature.

4.2.3. Discipline Clubs may have up to two (2) seats per Class Representative Position. To accomplish this, notice by email from the Discipline Club Chair to the CRO is required no later than five (5) days before the opening of Nomination Period.
   a. Regardless of the number of seats available, all candidates for a Class Representative Position shall run individually.

4.3. Internal Representatives Election Period

4.3.1. The Nomination, Campaign, and Voting Periods for the following Internal Representative positions shall be the same as those for the First Year Board of Directors election:
   a. The First Year Chair, elected by the First Year student body;
   b. The Fourth Year Chair, elected by the Fourth Year student body; and

4.3.2. A Member shall be considered nominated upon receipt by the CRO a completed Nomination Form, during the Nomination Period, which shall include:
   a. The Member's name, student number, contact information, and signature.

CHAPTER 5 - OTHER ELECTIONS

5.0. General

5.0.1. Use of the phrase "Appointed by" in this chapter shall mean that the organization in question may appoint any Member to fulfill the position.

5.1. Winter Election Period

5.1.1. The Winter Election shall consist of the Orientation Chair, the Iron Pin Director, and the University of Toronto Engineering Kompetition (UTEK) Director. The CRO shall also be elected during this election period, as described in section 1.1.

a. The Board of Directors may direct the CRO to defer the election of any of these positions, except the CRO, to the Valedictorian Election Period. In this case, the Nomination Period shall be the same as for the Valedictorian, but other details remain the same.

b. In the 2025-2026 academic year, the Iron Pin Director shall be elected according to the provisions of Chapter 7 instead of this section.

5.1.2. The Nomination Period for the Winter Elections shall commence at 9:00 am on the first Monday of the Winter semester and shall close at 5:00 pm the following Friday.

5.1.3. A Member shall be considered nominated upon receipt by the CRO a completed Nomination Form, during the Nomination Period, which shall include:

a. The Member's name, student number, contact information, and signature.

5.1.4. There shall be no campaigning for the positions in this election.

5.1.5. The Winter Ratification Meeting shall be for the purpose of electing the positions specified in section 5.1.1.

a. The aforementioned meeting shall occur within seven (7) business days of the close of the Nomination Period.

b. Positions deferred to the Valedictorian Election Period as described in section 5.1.1.a shall be elected at the February Board of Directors meeting.

5.1.6. The CRO shall determine the order in which positions are considered; however, the position of CRO shall be the last position considered at the Winter Ratification Meeting.

a. Each candidate for the position of Orientation Chair shall be given the opportunity to speak for two (2) minutes before the election for this position.

5.1.7. Any election details not specified in Section 5.1 shall follow the provisions in Chapter 7 of this Bylaw.

5.1.8. For the purposes of forming the hiring committees, the Incoming and Outgoing Officers as specified under section 7.2.1 shall be the overseeing Officer for the position and another currently serving Officer, chosen at the discretion of the CRO.

a. The overseeing Officer for the CRO hiring committee shall be the Speaker.

5.2. Valedictorian Election Period

5.2.1. The Nomination Period for the Valedictorian shall commence at 9:00am on the nearest Monday before February 1st and shall close at 5:00pm on the Friday of the same week.
   a. The Hi-Skule™ Director shall also be elected during the Valedictorian Election Period, as if deferred from the Winter Election Period as described in section 5.1.1.a

5.2.2. A Member, who must be in their Final Year, shall be considered nominated upon submitting a completed Nomination Package to the Engineering Society Office, no later than the close of the Nomination Period, which shall include:
   a. The Member's name, student number, contact information, and signature

5.2.3. Potential candidates must submit a voter's statement in accordance with section 8.0.6, through a means specified by the Nomination Package, which is due at the close of the Nomination Period; and

5.2.4. An All Candidates Meeting (ACM) shall be held pursuant to the description in 2.2.1.

5.2.5. The Campaign Period shall:
   a. Commence between twenty four (24) and seventy-two (72) hours after the ACM; and
   b. Be between two (2) and three (3) business days (inclusive) in length.

5.2.6. The Voting Period shall:
   a. Commence between twelve (12) and seventy-two (72) hours after the end of the Campaign Period; and
   b. Be between two (2) and three (3) business days (inclusive) in length.

5.2.7. The Valedictorian will only be elected from votes of Fourth Year Members.

5.3. Speaker of the Board of Directors Election Period

5.3.1. The Nomination Period for the Speaker of the Board of Directors shall commence at 9:00am on the nearest Monday after April 30th and shall close on the Friday of the same week.

5.3.2. A Member shall be considered nominated upon receipt by the CRO a completed Nomination Form, during the Nomination Period, which shall include:
   a. The Member's name, student number, contact information, and signature; and
   b. The names, student numbers, and signatures of ten (10) Nominators, all of whom shall be Members.

5.3.3. There shall be no campaigning for this position.

5.3.4. Once the Nomination Period is closed, all nominees shall be interviewed by a hiring committee consisting of the following members, selected by the CRO:
   a. The outgoing Speaker;
      i. The outgoing Speaker will remain on the hiring committee even if they are not serving as the interim Speaker at the time.
   b. One of: the outgoing CRO, Chair of the Policy and Structures Committee or Ombudsperson;
   c. One of: the outgoing Officers;

d. One (1) outgoing Director of the Board;
e. One (1) incoming Director of the Board.

5.3.5. If one or more positions on the hiring committee remain vacant after exhausting all options, the CRO may select available individuals from the other brackets.

5.3.6. The hiring committee shall follow the interview process outlined in Sections 7.2.4, 7.2.5, 7.2.6, and 7.2.7.

5.3.7. At the May Board of Directors Meeting, each candidate will have the opportunity to speak for two (2) minutes on their candidacy for the position and chair a mock meeting held during recess. The agenda for the mock meeting will be prepared by the interim Speaker.

5.3.8. Other details of the elections shall be at the discretion of the CRO.

CHAPTER 6 - REFERENDA

6.0. General

6.0.1. When voting on a referendum, a voter may only choose to vote "Yes", vote "No", or spoil their ballot. Spoiling a ballot means that it counts towards the quorum required for the referendum result to be valid, but does not count for or against the simple majority required for the result to take effect.

a. For example, if out of 100 eligible voters, two people vote "Yes", one person votes "No", and two people spoil their ballots, then a 5% quorum is met (5 votes were cast) and the result is in favor (2/3 unspoiled ballots were in favor).

6.0.2. For the purposes of other chapters, the following parties are all considered "candidates" for referenda and can receive warnings and be disqualified in accordance with Chapter 9. "Disqualification" in the case of a referendum means invalidating all votes for the respective option:

a. A student group financially supported by a levy referendum (as noted in Section 6.1.5), for the "Yes" option.
b. The party calling a recall referendum, for the "Yes" option.
c. The person facing recall in a recall referendum, for the "No" option.

6.0.3. Referendum rules not specified in this chapter shall be decided by the CRO with the Speaker's approval.

6.1. Levy Referenda

6.1.1. A referendum for the purpose of creating, renewing, increasing, decreasing, or removing student fees as specified in Bylaw 0 Section 1.2 must be called by one of:

a. A two-thirds majority vote at a Board of Directors Meeting; or
b. A simple majority vote at a General Meeting.

6.1.2. The question text of such a referendum shall contain exclusively the following elements:

a. The question of support (e.g. "Do you support ... ?")
b. The fee in question (e.g. "levy for [student group]")
c. The amount of the fee in each semester per full-time and part-time student, and the resulting amount in each year (e.g. "$1.50 per semester per student for both Fall and Winter semesters, for a total of $3.00 annually")
d. The sessions during which the fee will be levied (e.g. "the 2024-2025 and 2025-2026 terms")
e. Example question text: "Do you support a $1.50 per semester per student levy for [student group] for the 2024-2025 and 2025-2026 terms? ($1.50 per semester per student for both Fall and Winter semesters, for a total of $3.00 annually.)"

6.1.3. The campaign and voting periods for such a referendum shall run concurrently with the Spring Elections cycle following when it is called.

6.1.4. The party calling such a referendum may provide, when calling the referendum, a document in support of the referendum, to which a link will appear alongside the referendum question when it is presented to voters.

6.1.5. If the fee in question is to financially support a specific student group, the following campaign rules apply to the student group:

a. Section 8.0, Section 8.2, Section 8.3, Section 8.6, and Section 8.7 apply in full, with the following exceptions:
   i. Social media accounts need not be new.
   ii. Social media accounts may continue to be active after the campaign period, but may not post further campaign material.
   iii. The student group may use its own logos and endorse itself (contrary to Section 8.3), but its members may not publicly endorse it.
   iv. Campaign messages may be posted in the student group's own internal channels but still may not be posted in other groups not created for the purpose of campaigning.

b. Physical campaign materials and in-class speeches, as outlined in Section 8.1 and Section 8.4 respectively, are not allowed.

c. Section 8.5 does not apply. Any member of the student group may assist with its campaign.

6.1.6. Such a referendum which receives votes from at least 5% of Members, of which a simple majority are in favor, shall lead to the fee being modified as proposed. Otherwise, the referendum fails.

6.2. Referenda to Recall a Class Representative

6.2.1. A referendum to recall a Class Representative must be called by a Referendum Form submitted to the Engineering Society Office consisting of a list of signatures of Regular Members in the Class Representative's constituency, which contains:

a. Each signer's name and student number; and

b. The signatures of at least ten (10) Members in the Class Representative's constituency, or at least 50% of the constituency if it is smaller than twenty (20) Members.

6.2.2. The question text of such a referendum shall be: "Do you support recalling [name] from their position as [discipline and year] Class Representative?" where "[name]" is the name of the Class Representative in question and "[discipline and year]" is the constituency they represent.

6.2.3. The voting period for such a referendum shall begin between seven (7) and fourteen (14) days after it is called, at the CRO's discretion, and shall last at least three (3) days. If possible within these constraints, the voting period shall be aligned with the voting period of any other ongoing election cycle.

6.2.4. There shall be no campaigning for such a referendum. Campaigning in any form by either the party calling the referendum or the Class Representative in question, beyond

the voter statements outlined below, will result in a warning to the campaigning party, in accordance with Section 9.1

6.2.5. Both the party calling such a referendum and the Class Representative in question may provide a voter statement of at most one-hundred (100) words in length, in accordance with section 8.0.6.

a. For the party calling the referendum, this statement is limited in content to specifying how the Class Representative has neglected their duties as specified in Bylaw 7 Section 3.0.4. This statement must be provided at the same time as the referendum is called.

b. For the Class Representative in question, this statement is limited in content to rebutting the calling party's statement and/or otherwise defending their conduct. This statement must be provided to the CRO at least twenty-four (24) hours before the start of the voting period.

c. If approved by the CRO as compliant with the above rules, these voter statements will be displayed alongside the referendum question when it is presented to voters.

6.2.6. The Class Representative in question must be notified by email of the provisions of section 6.2.4 at least seven (7) days prior to the beginning of the voting period of the referendum.

6.2.7. The Class Representative's constituency must be notified by email as soon as the CRO decides the voting period of the referendum, and once again at the start of the voting period, unless the voting period is aligned with another election cycle, in which case the notification timeline for that election cycle applies.

6.2.8. Such a referendum which receives votes from at least 5% of Members in the constituency in question, of which a simple majority are in favor, shall lead to the Class Representative being recalled. Otherwise, the referendum fails.

6.3. Referenda to Recall a Board Representative

6.3.1. A referendum to recall a Board Representative, as defined in Bylaw 1 section 4.1, for reason of breaching the standard of conduct in Bylaw 1 section 4.11.3 must be called by a simple majority vote at a Board of Directors Meeting.

6.3.2. The question text of such a referendum shall be: "Do you support recalling [name] from their position as [constituency] Board Representative?" where "[name]" is the name of the Board Representative in question and "[constituency]" is the constituency they represent (e.g. "At-Large", "First Year").

6.3.3. The voting period for such a referendum shall begin at most eleven (11) business days after it is called, at the CRO's discretion, and shall last at least three (3) days. If possible within these constraints, the voting period shall be aligned with the voting period of any other ongoing election cycle.

6.3.4. There shall be no campaigning for such a referendum. Campaigning in any form by either the party calling the referendum or the Board Representative in question, beyond

the voter statements outlined below, will result in a warning to the campaigning party, in accordance with Section 9.1

6.3.5. Both the party calling such a referendum and the Board Representative in question may provide a voter statement of at most one-hundred (100) words in length, in accordance with section 8.0.6.

a. For the party calling the referendum, this statement is limited in content to specifying how the Board Representative has breached the standard of conduct in Bylaw 1 section 4.11.3. This statement must be provided at the same time as the referendum is called.

b. For the Board Representative in question, this statement is limited in content to rebutting the calling party's statement and/or otherwise defending their conduct. This statement must be provided to the CRO at least twenty-four (24) hours before the start of the voting period.

c. If approved by the CRO as compliant with the above rules, these voter statements will be displayed alongside the referendum question when it is presented to voters.

6.3.6. The Board Representative's constituency must be notified by email as soon as the CRO decides the voting period of the referendum, and once again at the start of the voting period, unless the voting period is aligned with another election cycle, in which case the notification timeline for that election cycle applies.

6.3.7. Such a referendum which receives votes from at least 5% of Members in the constituency in question, of which a simple majority are in favor, shall lead to the Board Representative being recalled. Otherwise, the referendum fails.

CHAPTER 7 - PROJECT DIRECTORS

7.0. General

7.0.1. Unless otherwise stated in the Bylaws, all Project Directors shall be elected at the Spring Ratification Meeting by the process outlined in this Chapter.

7.0.2. Should nominations for a position elected under this Chapter be reopened, a new election for that position shall be run at the next election cycle.

7.1. Nominations

7.1.1. The Nomination Period for Project Directors shall commence no later than 9:00am on the Monday of the fourth week after Reading Week of Winter Term and shall close no earlier than four (4) business days later.

7.1.2. Members may be nominated for up to two (2) Project Director positions.

7.1.3. A Member shall be considered nominated upon receipt by the CRO a completed Nomination Form, during the Nomination Period, which shall include:

a. The Member's name, student number, contact information, and signature.

7.1.4. In the event that a Project Director position is vacant, the Nomination Period shall be five (5) business days and the election shall occur at the first Board meeting thereafter.

a. Nominations for a Project Director position shall be re-opened up to a maximum of two (2) times in cases of successive vacancies; and

b. If the position is still vacant after the second re-opening, nominations may be re-opened at the discretion of the overseeing Officer, in coordination with the CRO.

7.2. Hiring Committees

7.2.1. Once the Nomination Period is closed, all nominees for each Project Directorship shall be interviewed by a hiring committee consisting of the following members:

a. The outgoing Project Director(s);

b. The incoming overseeing Officer;

c. The outgoing overseeing Officer;

d. Two (2) Project Director(s), Internal Representative(s), or Discipline Club Chair(s).

7.2.2. Unless otherwise specified in Bylaw 3, each Project Director Hiring Committee shall include all members from each bracket outlined in Sections 7.2.1.a through 7.2.1.c, and no more than two (2) members selected from Section 7.2.1.d.

a. At each interview, a quorum of >50% of Committee members must be present and able to speak/write during the interview. If there are two project directors, at least one director must be present for any given interview.

b. If an insufficient number of members under Section 7.2.1.d are interested in sitting on the hiring committee, their place may be taken by Board Representatives or Officers as needed, at the discretion of the CRO.

7.2.3. Should the outgoing Officer be unable or unwilling to sit on the hiring committee as per Section 7.2.1.b, their place shall be filled in the following order of precedence:
   a. Any current Member who has previously served in that Officer position.
   b. Any Alumni Member who has previously served in that Officer position within the past 4 years.
   c. Any outgoing Project Director who served under the outgoing Officer.
   d. Any other outgoing Officer.
   e. Outgoing Board Members.

7.2.4. Nominees shall be informed of the members of the hiring committee at least twenty-four (24) hours before their interview.
   a. Nominees and hiring committee members are responsible for reporting any conflicts of interest to the CRO.
   b. Should there be a conflict of interest between any nominee and hiring committee member, the hiring committee member shall be replaced as per Section 7.2.3, at the discretion of the CRO.

7.2.5. At the request of the hiring committee, the CRO may allow up to two (2) Members (including Alumni Members) specified by the hiring committee to participate as non-voting members of the committee.

7.2.6. The hiring committee shall interview all nominees and minute each interview's questions and answers.
   a. If requested by the candidate, one member of the hiring committee must record the entire interview. The candidate may choose to make this recording available to the Board of Directors.
   b. Any and all recordings shall be destroyed immediately after the conclusion of the Board of Directors meeting electing the Project Director.

7.2.7. The recommendation report shall completely and accurately provide all reasoning for the recommendation provided, including discussion and concerns raised among the members of the hiring committee.

7.2.8. The outgoing Officer on the committee, or their replacement as specified in Section 7.2.3, shall be tasked with ensuring the recommendation report maintains a professional and respectful tone for all the candidates. The report shall accurately reflect the discussion held during the interview, to the best of the hiring committee's ability.

7.2.9. From the nominated candidates, the hiring committee shall recommend a number of candidates less than the number of positions available, a number of candidates equal to the number of positions available, a number of candidates greater than the number of positions available, or to re-open nominations.
   a. Should the number of candidates elected be greater than zero, but less than the number of positions available, nominations shall be reopened only for the unfilled positions, unless the smaller number of candidates elected is permitted for the position as specified in Bylaw 2. For example, Bylaw 2 permits only one (1) Orientation Chair to be elected, despite two (2) positions being available.

7.3. Board Meeting

7.3.1. Each recommendation report shall be circulated to Members of the Board of Directors, Members of the Hiring Committee, and candidates as soon as is reasonably possible.

a. Any recommendation report must be available to the parties listed in Section 7.3.1 at least 48 hours prior to the scheduled start of the Board of Directors meeting ratifying it.

b. At least one member of each hiring committee must be present at the Board meeting to motivate their respective recommendation report and answer questions from the Board.

c. Any position for which the associated recommendation report was not presented to the Board in accordance with the requirements in Section 7.3.1.a and Section 7.3.1.b may be tabled until the next meeting of the Board of Directors at the discretion of the CRO.

7.3.2. The Board of Directors shall be responsible for electing each Project Director in accordance with the recommendation (or recommendations) provided by the hiring committee.

7.3.3. Any Member may move to amend the recommendation for any particular Project Director in accordance with the Bylaws and Rules of Order governing the consideration of motions at a Board of Directors meeting.

7.3.4. If a recommendation report supports more candidates than positions, or is undecided, then the motion to adopt the recommendation shall be treated as a motion to conduct elections in accordance with section 0.6.3 onwards of the Standing Rules of Order.

a. If the recommendation report supports any candidates, those candidates shall be the ones under consideration in the election.

b. If the recommendation report is undecided, then all candidates who applied shall be the candidates under consideration in the election.

7.3.5. If a Member receives a position, they shall be removed from consideration for any others. If a candidate that received the recommendation withdraws, then they shall provide notice to the Speaker as soon as possible and that position shall be elected, or nominations re-opened, at the discretion of the Board of Directors after considering the recommendation report.

7.3.6. The CRO shall determine the order in which positions are considered.

a. Nominees nominated for two (2) positions may request the CRO to elect their preferred position first, which must be done at least one (1) day before the Board of Directors Meeting.

7.4. By-Elections

7.4.1. The CRO shall call a by-election in every month during which an elected Project Directorship position is vacant, if at least four (4) months remain before the end of the term of the position, and except as otherwise prohibited by the Bylaws.

7.4.2. The CRO shall add any elected Project Directorship positions which become vacant at least four (4) months before the end of the term of that position, and at least three (3) days before the end of the Nomination Period of an ongoing election, to that election as an additional by-election, unless the election is an Officer Election.

7.4.3. If no by-election can be held or amended at least four (4) months before the end of an elected Directorship's Term of Office, a Director may be appointed by resolution of the Board, first considering all/any executive members of the Directorship.

7.4.4. At every monthly Board Meeting during which an unelected Project Directorship is vacant, each such Directorship's overseeing Officer shall submit one of the following motions to the Board:

a. to appoint one or more replacement Directors to serve the rest of the Directorship's Term of Office
b. to remove the Directorship under Bylaw 2 section 0.0.11

CHAPTER 8 - CAMPAIGNING

8.0. General

8.0.1. Campaigning activities are allowed solely during the Campaign Period and may only be done by a candidate.

8.0.2. Candidates are limited to zero dollars ($0) in campaign expenses.

a. Tools and resources used to create the content outlined in section 8.1, section 8.2, and section 8.6 are not counted towards a candidate's campaign spending.

b. A printing budget may be determined at the discretion of the CRO in the case that a candidate does not have a printing quota or has exhausted their printing quota with the Engineering Computing Facility (ECF).

c. Objects used or distributed in relation to a campaign will be judged at reasonable market value, at the discretion of the CRO, and not at the value for which they were obtained. For example, distribution of freely obtained food in a campaign context would result in a breach of this rule.

8.0.3. The campaigning rules outlined in this Chapter apply to all positions identified in this Bylaw, with the exception of the following, for which candidates may not campaign:

a. Project Directors (including the Orientation Chair);

b. Neutral Officers

8.0.4. The CRO shall produce a document containing voter statements and platforms of all candidates. The permitted lengths of each shall be stated in the nomination package. The maximum length of a platform shall be left to the discretion of the CRO.

a. Notwithstanding section 8.2, the link to this document, as well as statements which would be permitted under section 8.7, may be posted on any social media platform during the election period.

8.0.5. Should campaigning activities occur for which permissibility is not explicitly addressed under the Bylaws of the Society, and the CRO judges these activities to violate the spirit of this Bylaw, the CRO may rule such conduct to be prohibited.

a. Any ruling under this section must be immediately communicated by the CRO to the Speaker, who may approve or overturn the CRO's ruling

i. Should a ruling be overturned by the Speaker, it is deemed null and void

ii. Should the Speaker take no action on the ruling within 24 hours, it shall be deemed to be approved.

b. These rulings must be communicated to candidates involved, and posted publicly on Skule™ Digest, if approved by the Speaker.

c. A candidate shall not be punished for conduct prohibited under these rulings unless said conduct occurs after the ruling has been made publicly known.

8.0.6. All candidates, regardless of whether they are running opposed or unopposed, must establish a campaign presence and engage with voters.

a. All candidates must submit a voter statement, at an absolute minimum of one (1) word. This statement must be submitted to the CRO through a means specified by the Nomination Package, which is due at the close of the Nomination Period.
b. All candidates must provide an electronic means of contact in the voter statement to facilitate voter engagement and inquiries. Acceptable forms of contact include an email address, a social media account handle (The CRO shall approve social media platforms deemed acceptable), and/or a telephone number.

8.1. Materials

8.1.1. For Officer candidates, posters are limited to twenty-five (25) letter-size pages or the equivalent area using letter and tabloid-size only.
8.1.2. For Board of Director and Discipline Club Chair candidates, posters are limited to ten (10) letter-size pages or the equivalent area using letter and tabloid-size only.
8.1.3. A candidate's campaign for any position not encompassed in 8.1.1 and 8.1.2 is not allowed any posters.
8.1.4. Posters shall be approved by the CRO and stamped by the Society. Locations of posters must be shared with the CRO.
8.1.5. Posters shall not:
a. Exceed the size of 2 letter-size pages;
b. Be placed on other posters or notices;
c. Be clustered in groups of more than 2;
d. Be posted in restrooms in any building;
e. Be put up in computer labs, on tables or any glass surfaces;
f. Be posted outdoors unless on a public message board;
g. Be placed in locations that are not the Sandford Fleming, Mechanical Engineering, Lassonde Mining, Wallberg Memorial, Galbraith, Rosebrugh, Haultain, D.L. Pratt Buildings, the Engineering Annex, or the Bahen Centre of Information Technology. Notably, they may not be placed in the Myhal Centre for Engineering Innovation and Entrepreneurship.
8.1.6. Candidates shall not leave posters for longer than one week after the election, else they will be fined $1/day per poster that is not taken down.
8.1.7. Banners are not permitted.
8.1.8. The CRO may disqualify any campaign materials (e.g. posters, social media posts) that contain content which could damage the reputation and/or legal standing of the society, including but not limited to:
a. Explicit content;
b. Offensive wording;
c. Trademarks and copyrighted content;
d. Endorsements.

8.2. Social Media

8.2.1. Each candidate shall submit no more than one campaign post to the CRO for publication on the CRO's official account(s). Once published by the CRO, such material may be redistributed or shared by any account, including the candidate's personal account, provided that all other conditions in the subsequent sections are met.

8.2.2. A candidate shall not create any new social media account for the sole purpose of campaigning, nor publish campaign content on any personal or other account except for content that has been submitted to and published by the CRO.

8.2.3. The CRO may, at their sole discretion, provide additional opportunities for candidates to engage directly with voters and present their campaign platforms. Any such opportunities shall be made available equally to all candidates and may include, but are not limited to:

a. AMA-style question-and-answer sessions or candidate interviews.
b. Features, collaborations, or other content published through EngSoc publications.

8.3. Slates and Endorsements

8.3.1. Slate campaigning will result in disqualification.

8.3.2. Candidates shall not use any privileged Engineering Society or third-party organization's resources to help with their campaign, including, but not limited to, the following:

a. Copiers;
b. Access to mailing lists; and/or
c. Servers.

8.3.3. Candidates are not permitted to use any official or visually similar marks of the Society or third-party organizations.

8.3.4. Endorsements by organizations or organization executives are not allowed; what constitutes an endorsement is at the discretion of the CRO.

8.3.5. Candidates are not permitted to lead voters to believe they are endorsed by any club or organization.

8.3.6. The following are examples of permitted endorsement:

a. The Toike Oike mocks you on their own initiative;
b. Campus news outlets conduct interviews with candidates; and
c. Sharing previous involvement in clubs or organizations without implying endorsement.

8.3.7. The following are examples of unauthorized endorsement:

a. Ask the President of the Society for a mention during a meeting;
b. Usage of any logo in a candidate's campaign material; and
c. A public statement by a club executive makes endorsing a candidate.

8.3.8. Candidates are not permitted to directly reference other candidates in their campaign; descriptions of candidates must only be of themselves, such as "I am the only candidate who ..." et cetera.

8.4. In-Class Speeches

8.4.1. In-class speeches before a class starts or after it ends are permitted, but permission needs to be granted from the lecturer. In-class speeches are not permitted for all candidates in any courses in which any candidates are lecturers.

8.4.2. The lecturer has sole authority to limit in-class speeches.

8.4.3. Candidates must give their own in-class speeches unless otherwise approved by the CRO.

8.5. Campaign Assistants

8.5.1. A Campaign Assistant is any person asked by a candidate to help, as a volunteer, in their campaign.

a. A candidate may have a maximum of one (1) Campaign Assistant.

b. A person may not serve as a Campaign Assistant for more than one candidate in the same election cycle.

8.5.2. Campaign Assistants must be Members.

8.5.3. Campaign Assistants may not be:

a. EngSoc Board Members, including Officers

b. UTSU Executives

c. Candidates for positions for which Campaign Assistants are permitted in the same election cycle (e.g. elected positions)

d. The incumbent in the role for which their candidate is running

8.5.4. Candidates must submit the information of their Campaign Assistant (Name, Discipline/Year, and Student Number) to the CRO prior to the Campaign Assistant performing any duties of the role.

8.5.5. Candidates are expected to ensure their Campaign Assistants are aware of and comply with the rules of the election.

8.5.6. Any violation of the rules by the Campaign Assistant is understood to be a violation on behalf of the candidate.

8.5.7. The following are examples of permitted activities by the Campaign Assistant on behalf of the candidate:

a. Designing and putting up posters;

b. General logistics and miscellaneous support such as scheduling class speeches, etc.

8.5.8. The following are examples of unauthorized activities by the Campaign Assistant on behalf of the candidate:

a. Doing class speeches on behalf of the candidate without explicit permission from the CRO;

b. Participating in the All Candidates' Forum on behalf of the candidate; and

c. Asking questions to other candidates who are contesting the same position as their candidate at the All Candidates' Forum.

8.5.9. The CRO must make available a list of all Campaign Assistants to all Members before the start of the Campaigning Period.

8.6. Communication During Campaign Period

8.6.1. No campaigning in quiet spaces, including but not limited to, the following:
- a. Computer labs;
- b. Libraries; and/or
- c. Study rooms.

8.6.2. No obnoxious or disruptive campaigning of any sort, including but not limited to, the following:
- a. Using a megaphone or other voice amplification device;
- b. Yelling;
- c. Playing loud music; and/or
- d. Creating a mess for cleaning staff.

8.6.3. The official language of campaigning is English. Candidates wishing to use another language must supply an accurate and equivalent English translation, to be provided prior to the dissemination or delivery of the non-English material.
- a. Providing a false or misleading translation shall constitute a blatant breach of this rule.

8.6.4. Campaigning messages and/or campaigning material may not be posted in group chats/servers whose original purpose of creation was not campaigning.

8.7. Communication After Campaign Period

8.7.1. Once the Campaign Period ends, candidates must cease public communications regarding their campaign.

8.7.2. Candidates are allowed to inform students that elections are happening but are not permitted to indicate who they should vote for.

8.7.3. Candidates may continue to answer direct questions if asked, but only in a private fashion.

8.7.4. The following are examples of permitted communication after Campaign Period:
- a. "Voting is now open, go to vote.skule.ca to cast your ballot.";
- b. "Voting is open, you should go vote"; and/or
- c. Replying to a question or post from an individual via email, Facebook message, or in person.

8.7.5. The following are examples of unpermitted communication after Campaign Period:
- a. "Voting has started. Remember to vote for me for President."; and/or
- b. Replying to a question or post via mass email, Facebook wall, or in a group of people.

8.7.6. Communication after the Campaign Period must still comply with the regulations contained in Section 8.6 of this Bylaw.

CHAPTER 9 - PENALTIES

9.0. Warnings

9.0.1. Breach of any of the election rules will result in an official warning, via email from the CRO, along with instructions to amend the breach within twenty-four (24) hours.

9.0.2. If a breach is not amended within twenty-four (24) hours, it will be considered the same as committing the same action again.

9.0.3. All warnings given to a candidate shall be included both on elections.skule.ca and below their statement on vote.skule.ca.

9.0.4. If a warning is given to a candidate regarding a certain action and the same action is performed again, they will be disqualified.

9.1. Disqualifications

9.1.1. The CRO has the sole authority to disqualify a candidate if they receive warnings for three (3) separate breaches, or for other reasons presented in this Chapter.

9.1.2. The CRO has the authority to disqualify a candidate if it is deemed that an infraction of the rules has caused irreparable harm to the integrity of the election.

9.1.3. The CRO has the authority to disqualify a candidate for knowingly, blatantly or maliciously acting against the principles of the elections or breaching any election rule.

9.1.4. A disqualified candidate will not be removed from the ballot, unless they wish to withdraw. However, a note shall be added stating they have been disqualified but the decision is subject to appeal.

9.1.5. A disqualified candidate may petition to have their disqualification reviewed. Information regarding this process will be included in the disqualification notice.

CHAPTER 10 - APPEALS AND COMPLAINTS

10.0. Appeals and Complaints

10.0.1. Any appeals or complaints related to elections shall be brought in writing to an Election Appeals Committee (EAC) comprising:
- a. The Ombudsperson;
- b. A representative from the Engineering Alumni Association; and
- c. The Registrar of the Faculty of Applied Science and Engineering.

10.0.2. In the event that one of the members above is unable to serve on the committee, the remaining members of the Election Appeals Committee will select a reserve member from:
- a. The Policy and Structures Committee Chair;
- b. The Chair of the Academic Appeals Board of Faculty Council; or
- c. A graduating Officer.

10.0.3. The Election Appeals Committee shall report to the Board of Directors all matters brought to them and any recommended action.

10.0.4. The Election Appeals Committee's jurisdiction on any appeal shall be limited to the election(s) which the appeal concerns.

10.0.5. The Election Appeals Committee (EAC) shall consider those arguments submitted to them by the Office of Returning Officers (ORO) and the appellant. Other relevant parties, as determined by the EAC, may be given reasonable opportunity to submit additional arguments and evidence.

10.0.6. Any ruling of the Election Appeals Committee that upholds the ruling of the CRO in part or in full, or grants the requests of the appellant in part or in full shall be binding, unless opposed by a fourth-fifths majority vote of the Board, with at least a simple majority of the total membership of the Board voting to oppose. Members of the Election Appeals Committee and other Directors of the Board barred from voting by the Speaker will not be included in the total membership count.
- a. In the event the four-fifths threshold falls below the simple majority of the total membership of the Board due to absence of Directors of the Board, the Speaker shall table the motion to a special meeting where a higher number of Board members may be present.

10.0.7. Any other ruling of the Election Appeals Committee shall be binding unless opposed by a regular motion of the Board

10.0.8. Any recommendation of the Election Appeals Committee that does not pertain directly to the submitted Appeal, or any ruling beyond its jurisdiction shall not be binding.

10.1. Elections Appeals Process

10.1.1. If an appellant intends to submit an appeal more than twenty-four (24) hours prior to the beginning of the voting period, the appellant shall meet with the CRO and at least

one (1) of the Ombudsperson or the Speaker in an attempt to resolve the issue. After this meeting, the appellant may submit the appeal to the Election Appeals Committee.

10.1.2. If an appeal is submitted between twenty-four (24) hours prior to the beginning of the voting period and seven (7) days after the announcement of election results, to the minute, then the appeal shall be brought directly to the Election Appeals Committee.

10.1.3. No appeals submitted seven (7) days after the announcement of election results, to the minute, shall be considered.

10.1.4. All Election Appeal Committee rulings shall be released after the announcement and prior to the ratification of election results.

CHAPTER 11 - VOTING PROVISIONS

11.0. General

11.0.1. Voters shall rank candidates on their ballot in order of preference. Voters may rank as many candidates as they prefer.

11.0.2. There shall be a "Re-Open Nominations" option on each ballot whose effect is described in section 11.1.7

11.0.3. There shall be an option on each ballot to spoil it entirely. The number of spoiled ballots in each election is recorded, but otherwise spoiled ballots do not count towards the results in any way (except in referenda, as specified in section 6.0.1).

11.0.4. Ballots that contain a mark for only one candidate shall be considered to contain a single first-place vote for that candidate.

11.0.5. The following elections shall be held under a Gregory method of Single Transferable Vote system: Officers, Board of Directors, Discipline Club Chairs, Class Representatives, and any other electronic elections at the discretion of the CRO, as described in Section 11.1

11.1. Voting Method

11.1.1. Each voter's first preference candidate receives one (1) vote.

11.1.2. The quota of votes needed to win is calculated using the Droop quota, (N/(S+1))+1, where N is the number of valid first-preference votes in the first round and S is the total number of seats needed to be filled in the election (i.e., fractional votes are dropped). The quota does not change through subsequent rounds.

11.1.3. If, after all the votes have been transferred, a candidate achieves the quota, then:

a. They are elected to a seat and are ineligible to receive any more votes.

b. Their votes are transferred to the voter's next preference at a value of V(C-Q)/C where V is the value of the vote when the candidate was elected, C is the candidate's vote-total when elected, and Q is quota.

11.1.4. If, after all the votes have been transferred, no candidate achieves the quota, then:

a. Each candidate with the lowest vote-total is eliminated, and they are ineligible to receive any additional votes. If there is a tie in the process of elimination, a backwards tie-breaking procedure will be performed to determine the candidate that is eliminated. A backwards tie-breaking procedure views the previous stages in a sequential order and eliminates candidates based on those vote totals.

b. Each voter's vote (which was cast for these candidates) remains at its present value.

11.1.5. Each vote that belonged to the eliminated or elected candidate(s) is transferred to the voter's next preference at its present value.

a. If this candidate is one who was previously eliminated or elected, Section 11.1.5. is repeated.

b. If the voter has not listed any additional preference or was unable to do so, their ballot is exhausted.

11.1.6. Section 11.1.3. through Section 11.1.5. are repeated until:

a. All of the seats are filled by election; or

b. At the end of Section 11.1.4, if the number of eligible candidates is equal to or less than the number of unfilled seats and there is no candidate who can reach the quota, then the election is stopped, the unfilled seats are considered vacant, and a by-election is held immediately following with the timeline at the CRO's discretion.

11.1.7. If "Re-Open Nominations" receives equal to or more than Q votes, the election iterations are stopped and the unfilled seats are reopened in a by-election.

11.1.8. In the event a candidate withdraws or is disqualified between the start of the voting period and the ratification of election results:

a. Any votes cast where the candidate was the first-preference and there were no further preferences stated will be nullified and will not count towards the quota.

b. Any votes cast where the candidate was the first-preference and there were further preferences stated will be adjusted such that the second-preference becomes first preference and so on.

c. Any votes cast where the candidate was not the first-preference will be adjusted such that the candidate is removed from their vote and all preferences stated below them move up the order.